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BLUE LILY PROPERTIES EAST RAND
97 Devon Ave
Dalview, Brakpan
1541

BLUE LILY PROPERTIES

OFFER TO PURCHASE

SECTIONAL TITLE UNIT

To: The Owner of the under mentioned Property

Full Name: and Surname/Entity Name: _____

Full Name: and Surname/Entity Name: _____

(hereinafter referred to as the "Seller")
Of_____

(not P O Box number) Email Address_____

I/We, the undersigned

Full Name: and Surname/Entity Name: _____

Full Name: and Surname/Entity Name: _____

(hereinafter referred to as the "Purchaser")
Of_____

(not P O Box number) Email Address_____

hereby offer to purchase through the undersigned Property Practitioner_____ who is registered with and acts as an independent contractor of Blue Lily Property Consultants t/a Integra Properties, (hereinafter referred to as the "Agent") the following freehold property being a Sectional Title Unit comprising:

- Section/s _____ being Flat/Townhouse No. _____ in the building/s in the Sectional Title Scheme known as _____
- Sectional Title Scheme No. _____ as shown and more fully described in the Registered Sectional Plan thereof, and measuring _____ square meters.
- An undivided share in the common property in the land situated at _____

  _____

  and building or buildings as shown and more fully described in the said Sectional Plan, apportioned to the said Section in accordance with its participation quota specified in the appropriate Schedule endorsed on the Sectional Plan; and
- The right to the exclusive use and occupation of the following area/s of the common property allocated to the Unit in terms of the Rules for the control and management of the Sectional Title Scheme:

Delete if not * parking bay / garage number_____

Applicable * utility / domestic's room number _____

* the private garden area attached to the said section_____hereinafter

referred to as the "Property") subject to all conditions mentioned or referred to in the current and/or prior

Certificates of the Registered Sectional Title to the Property .

Save as expressly provided in this Agreement or in the Property Condition Report annexed hereto, the property is sold voetstoots (as is), in the condition in which it stands as at the date of signature of this Agreement, together with all buildings, improvements, and permanent fixtures and fittings, and subject to all conditions, restrictions, servitudes, and other limitations contained in the title deeds of the property.
Acknowledgement by Purchaser
The Purchaser, by signing this Agreement, acknowledges and agrees that:
1 The property is sold in the specific condition in which it presently exists and as disclosed to the Purchaser.
2 The Purchaser has inspected the property and is acquainted with its nature, extent, and condition.
3 The Purchaser accepts the property voetstoots and is satisfied with its condition.
4 The Seller shall not be liable for any patent defects in the property; and
5 The Purchaser acknowledges that the provisions of this clause are subject to any applicable statutory rights of the Purchaser under the Consumer Protection Act, 2008 (if applicable).
Acknowledgement by Seller
The Seller, by signing this Agreement, acknowledges that:
1 The Seller is not aware of any latent defects in the property other than those disclosed in the Property Condition Report attached to this Agreement; and
2 The Seller has not deliberately concealed any material defect which could not reasonably have been detected by the Purchaser upon inspection.

1. PURCHASE PRICE

1.1 The purchase price is the sum of R_____ (_____

_____)

The Parties record that should value added tax (VAT) be payable, the said purchase price is inclusive of VAT. Payable, free of bank exchange, as follows:

1.1.1 In cash within _____ days of the date of acceptance of this offer, R_____

(_____)
to be deposited with the Conveyancer, which amount shall be held in trust pending registration of the Property into the Purchaser's name.

1.1.2 An amount of R_____(_____) to be deposited within 7(Seven) days of date of registration of the Purchaser's existing property referred to in clauses 15 and 16. The Purchaser hereby instructs the Attorneys attending to the transfer of his existing Property to issue a guarantee and/or undertaking for this amount in favour of the Conveyancer's Trust account on demand and to pay the amount to the Conveyancer on registration.

1.1.3 _____

_____

1.1.4 For the sum of R _____ (_____

_____) the Purchaser shall within _____ days of the date of acceptance of this Offer furnish to the Seller or the latter's nominee an approved financial institution's guarantee in favour of the Seller and/or the latter's nominee payable against registration of transfer of the property into the Purchaser's name. (If Clause 14.1 is applicable within the same period after the date on which written advice shall have been given by or on behalf of the proposed Mortgagee/s stating that the Mortgage Bond/s have been granted subject to all the usual terms and conditions).

2. PAYMENTS BY PURCHASER/S

2.1 It is recorded that neither the Seller, the Agent, the Transferring Attorneys or any of their employees, representatives, agents or assigns shall under any circumstances whatsoever, whether by way of telephone, e-mail correspondence or otherwise, from the signature date of this agreement to the transfer date or thereafter, change its banking details or request for any payment due or to be made in terms of this Agreement, to be paid into any other bank account.

2.2 It shall at all times be the sole responsibility of the Purchaser to diligently ensure that all payments in terms of this Agreement are made into the correct bank account.

2.3 Neither the Seller, the Agent, the Transferring Attorneys or any of their employees, representatives, agents or assigns shall accept any liability of whatsoever nature for damages or loss that the Purchaser may suffer as a result of making any payment in terms of this Agreement into a fraudulent bank account.

2.4 The Purchaser acknowledges by his signature hereto of this sales agreement, that he has prudently read and considered the provisions of the relevant clauses above and understands the meaning and significance thereof.

3. TRANSFER

Transfer of the property shall be effected by the Seller's conveyancers within a reasonable time after the Purchaser has complied with the terms of Clause 1 hereof and made payment to the said conveyancers of transfer duty, stamp duty and all other costs of transfer and matters incidental thereto, for all of which the Purchaser shall be liable and obliged to make payment on demand. The Purchaser hereby warrants that he has sufficient funds to make said payment on demand.

The **estimated** costs are:
Bond registration R_____
Property Transfer R_____

The Seller appoints as his nominated Conveyancer:

Company Name:	
Contact Person:	
Address:	
Tel. no:	
E Mail:	

4. PROFESSIONAL FEE

4.1 The Seller shall pay the Agent's professional fee at the rate of 7.5% of the purchase price which shall be deemed to be earned upon signature of this Agreement and the fulfilment or waiver of any conditions to which it may be subject and payable on registration of transfer.

4.2 The Agents' professional fee is a first charge against the deposit and/or proceeds of the sale, and the Seller and/or the Purchaser hereby irrevocably authorises and instructs the party receiving the same to pay the professional fee when due.

4.3 The Parties hereto stipulate for the benefit of the Agent (who accepts the benefit by procuring the Parties' signatures hereto) as follows: -

4.3.1 The Conveyancers are irrevocably instructed not to pass transfer until they have ensured that they will have sufficient funds in hand enabling them to pay whatever amount shall be owing to the Agent in respect of professional fee.

4.4 Should the sale be cancelled as a result of either of the Parties defaulting in any of their obligations towards the other, or for any other reason, the defaulting Party shall be liable to pay the Agent's professional fee. Such liability is without prejudice to whatever rights the Agent may have against the other Party.

4.5 Notwithstanding anything to the contrary contained herein, if the sale is cancelled at any time by mutual agreement between the Purchaser and Seller, the Agent will be entitled to payment of the professional fee from the Seller and the Purchaser, jointly and severally, the one paying the other to be absolved and on the basis that the party making payment shall be entitled, in the absence of any written agreement to the contrary, to claim one half of the amount so paid by him from the other party.

5. POSSESSION

Possession of the Property shall be given to the Purchaser on date of registration of transfer. From such date, all benefits and risks of ownership in respect of the Property shall pass to the Purchaser, including the liability for any rates and taxes and other imposts levied thereupon. The Seller records that he/she is not aware of any claims for outstanding rates or utilities by the Municipality and guarantees that all amounts owing to the Municipality will be paid prior to transfer.

6. OCCUPATION

6.1 The Purchaser is hereby notified that should the Property be let to tenant/s, then the purchase is made subject to the tenant/s rights under Agreement of Tenancy and the law and regulations protecting and relating to the tenant/s, and that if the Purchaser requires occupation of the Property it will be necessary for the Purchaser to make arrangements with the tenant/s. The Seller gives no warranty that the Purchaser will obtain actual occupation of the Property on the date provided herein. The Purchaser acknowledges being fully aware of the protection afforded to tenants under the Rent Act No. 43 of 1950 and any amendments thereof insofar as same may be applicable to the abovementioned tenant/s.

6.2 The Seller and all other occupants of the Property shall be bound and obliged to vacate the Property by midday on:

_____

upon which date the Purchaser shall take occupation of the Property.

6.3 If so requested by the Seller, the Purchaser shall be obliged to vacate the Property immediately upon cancellation of the sale for any reason whatsoever, it being agreed that no tenancy shall be created by any such prior occupation.

6.4 The Purchaser shall not be entitled to make any alterations to the property before transfer without the prior written consent of the Seller, which consent shall be at the Seller's sole and absolute discretion.

7. OCCUPATIONAL RENT

Should date of occupation not coincide with date of transfer, the Party enjoying the right to occupation of the Property while registered

in the name of the other Party shall pay monthly occupational rent of R_____

(_____)

monthly in advance, which amount excludes water and electricity consumption for the said period, subject to entitlement to pro rata refunds by way of customary adjustments against transfer during a month.

8. BREACH

8.1 Should either party commit a breach of any of the terms of this Agreement, and fail to remedy same within (7) seven days of being called upon in writing to do so, the aggrieved party shall be entitled to, without prejudice to his rights, claim any damages that he may have suffered as a result of such breach, to cancel the Agreement by written notice to the defaulting party; or to claim specific performance by the party of his/her obligations in terms of this Agreement.

8.2 No latitude, extension of time or indulgence granted by either party to the other shall be construed as prejudicing such party's right to insist on the strict and punctual compliance by the other party with the terms of this Agreement.

8.3 Should this agreement be cancelled as a result of breach by the Purchaser, then the Purchaser acknowledges and irrevocably agrees that his deposit and/or any amount paid by him to the Conveyancer for costs in connection with the transaction, may be utilized towards payment of the Agents Commission and may be paid out to the Agent by the Conveyancer from such deposit or cost received. The Agent, the Seller and Purchaser hereby indemnify the Conveyancer against any claims for damages or otherwise that may be instituted by any party to this deed of sale for any reason of payment of the Agents Commission by the Conveyancer to the Agent in accordance with this paragraph. Any balance shall be paid to the Seller as liquidated damages.

9. VARIATIONS

9.1 Any latitude or extension of time which may be allowed by the Seller to the Purchaser in respect of any payment provided for herein, or any matter or thing which the Purchaser is bound to perform or observe in terms hereof, shall not in any circumstance be deemed to be a waiver of the Seller's right, at any time, to require strict and punctual compliance with each and every provision or terms hereof.

9.2 Any agreement between the Purchaser and the Seller to cancel, alter or add to this Agreement shall not be binding and shall be of no force nor effect unless reduced to writing and signed by the Parties hereto before witnesses.

10. FIXTURES AND FITTINGS

The Property is sold together with any buildings and other improvements thereon and if there are such buildings and other capital improvements: e.g. pelmets, door keys, fitted carpets, curtain fittings, blinds therein, fences, trees and shrubs. Also included in this sale are the following items (if any) which the Seller warrants will be in working order on date of occupation and are fully paid for: stoves, built-in heaters, electric fittings, fitted TV aerials, fitted M-Net aerials, satellite dishes, fibre to the home and WiFi connections, motors, pumps, alarm systems and all pool equipment:

_____

_____

11. WARRANTIES AND DISCLOSURE

11.1 Neither representations nor warranties as to the measurement of the Property have been given or made by the Seller or on the Seller's behalf. The Seller shall not profit by any excess nor be answerable for any deficiency in the extent of the Property. If the Property has been erroneously described herein, such mistake or error shall not be binding on the Seller but the description of the Property, as set out in the Seller's Title Deed, shall apply and, in such event, the Parties agree to the rectification thereto to conform to the intention of the Parties.

11.2 The Seller certifies that the improvements to the Property comply with the provisions of the servitudes and town planning schemes and with all laws and by-laws in respect of any improvements to the Property.

11.3 The Purchaser hereby confirms that he has read and accepts the identified defects of the property as described in the Immovable Property Condition Report (Annexure 3 hereto) and any supporting documents thereto.

12. DOMICILIUM

The Parties hereby choose domicilium citandi et executandi for the delivery of all notices and/or processes arising herefrom at the addresses set out by them in the preamble hereto.

13. PARTIES CAPACITY AND RESPONSIBILITY

Should the Purchaser be: -

13.1 Married in Community of Property, the Purchaser warrants that their spouse shall forthwith countersign this Agreement where indicated at the foot hereof and thereby: -

13.1.1 contractually assist the spouse herein as far as may be necessary, if at all; and

13.1.2 bind himself as surety and co-principal debtor jointly and severally with the spouse for all his obligations arising from this Agreement; and

13.1.3 commit himself also to assist and so bind himself in respect of the Purchaser's application and endeavours to procure a mortgage loan, and in respect of the mortgage loan itself as contemplated in Clause 14.1 below.

13.2 A plurality of persons, their obligations arising from this Agreement shall be joint and several.

13.3 A Company, Close Corporation, Trust or a Principal represented herein by the Agent, the person/s signing this offer on behalf of the Purchaser hereby interposes as and binds himself as surety for, and co-principal debtor with the Purchaser for the due and proper discharge of all the Purchaser's obligations arising from this Agreement, and further hereby undertakes to sign all documents of suretyship, co-principal debtorship, or other documents which may be required by any mortgagee/s contemplated in this Agreement so as to ensure the fulfilment of any condition/s to which this Agreement may be subject.

13.4 A person in his capacity as a trustee for a Company to be formed, such person in his personal capacity shall be personally liable as Purchaser under this Agreement unless the Company is formed and fully adopts and ratifies the terms of this Agreement within 30 (thirty) days of acceptance by the Seller and shall: -

13.4.1 until the proposed Company is formed and properly adopts and ratifies this Agreement, be and have the personal rights and obligations of the Purchaser hereunder, and

13.4.2 bind himself (and by his signature hereto does so) as surety for and co-principal debtor in solidium, jointly and severally, with such Company in favour of the Seller for all the obligations of such Company arising herefrom; and

13.4.3 sign all documents of suretyship, co-principal debtorship or other such documents of indebtedness which may be required by any mortgagee/s contemplated in this Agreement so as to ensure the fulfilment of any condition/s to which this Agreement may be subject.

Should the Seller be:

13.5 A Company, Close Corporation or Trust represented herein by the Agent, the person signing this offer on behalf of the Seller hereby binds himself as surety for and co-principal debtor with the Seller for the due and proper discharge of all the Seller's obligations arising from this Agreement.

14. BOND FINANCE

14.1 This Agreement of Sale shall be subject to the suspensive condition that the Purchaser (or the Seller, or the Agent on the Purchaser's behalf) obtains approval of a loan upon the security of a first mortgage bond to be registered over the Property for

the sum of not less than R_____ (_____

_____)
by a registered Financial Institution at such rates of interest and on such terms as are stipulated by the said financial institution. Such a loan to be approved within _____ days after the date of acceptance of this Offer, which time is automatically extended for a further period not exceeding _____ days on the proviso that, should the Purchaser not already have done so, undertakes to immediately provide the Agent's Bond Originator with all the required documentation to enable the Originator to apply for the loan on the Purchasers behalf. Should such loan not be procured as aforesaid, this sale shall be automatically cancelled and be of no further force nor effect. The Purchaser undertakes properly and expeditiously to do all things and sign all documents reasonably necessary to fulfil this condition as soon as possible and shall forthwith (and subsequently if required) duly, properly, and fully make application to such Financial Institutions as may be recommended by the Agent.

14.2 Clause 14.1 shall be deemed to have been fulfilled if advice is given by the Agent or the proposed mortgagee that the loan within the meaning Clause 14.1 has been approved, even if the mortgagee reserves the right to withdraw the said bond, subject to any or all of the under mentioned conditions:

14.2.1 subject to the retention by the proposed mortgagee of certain funds pending completion of repairs or renovations as it may require;

14.2.2 subject to any conditions, qualifications or deferment.

15. SALE OF PURCHASER'S PROPERTY (SOLD)

15.1 It is recorded that the Purchaser is the registered owner of certain property lot _____ situate at _____

_____
(hereinafter referred to as the Second Property) which property has been sold to another.

15.2 This Agreement is further subject to:

15.2.1 The condition that any suspensive conditions contained in the Agreement of Sale of the second property are fulfilled

by not later than _____ 20_____

15.2.2 Transfer of the "Second Property" being registered into the name of its buyer so as to enable the Purchaser to comply with his obligations to the Seller in respect of the Purchase Price under this Agreement.

15.3 The dates referred to in Clauses 15.2.1 and 15.2.2 above may be extended by the Agent in its sole discretion for further reasonable periods of time.

15.4 Upon fulfilment of this condition, the transfer of both properties (being the Property and the Second Property) shall, insofar as may be necessary, be linked in the conveyancing and financing processes and the Purchaser hereby irrevocably instructs his

conveyancers, Messrs _____ to collaborate with the Seller's conveyancers, and to establish guarantees and/or undertakings and/or to make Trust payments as may customarily and reasonably be required by the Seller's conveyancers in respect of the Purchaser's obligation to the Seller relating to the purchase price under this Agreement, with the transfers, guarantees and payments being linked as simultaneous transactions.

16. SALE OF PURCHASER'S PROPERTY (TO BE SOLD)

16.1 The Agreement is further subject to the suspensive condition that, within _____ days of the signing of these presents, the

Purchaser receives an Offer to Purchase certain property lot _____ situate at _____

_____ (herein referred to as the

Second Property) of which he is the registered owner for not less than R_____

(_____)
gross on terms which are approved by the Managing Director or other nominee of the Agent which he considers will enable the Purchaser to comply with his obligations to the Seller in respect of the purchase price under this Agreement, as amplified hereunder.

16.2 The Purchaser undertakes to immediately commence marketing the Second Property and to do all reasonable things and to take all reasonable steps to ensure the efficient, timeous and proper fulfilment of this condition. More particularly, but without prejudice to the generality of the aforegoing, the Agent shall be entitled to reasonable access to the Second Property for viewing by prospective purchasers and Sunday show days, and the Purchaser generally undertakes to co-operate with the Agent in its endeavours to market and sell the Second Property and timeously fulfil this condition.

16.3 Any sale of the Second Property within the time specified in Clause 15.1 above shall constitute fulfilment of this condition.

16.4 Upon fulfilment of this condition, the transfer of both properties (being the Property and the Second Property) shall, insofar as may be necessary, be linked in the conveyancing and financing processes; and the Purchaser hereby irrevocably instructs his conveyancers to collaborate with the Seller's conveyancers, and to establish guarantees and/or undertakings and/or to make Trust payments as may customarily and reasonably be required by the Seller's conveyancers in respect of the Purchaser's obligations to the Seller, relating to the purchase price under this Agreement, with the transfers, guarantees and payments being linked as simultaneous transactions.

17. SUSPENSIVE CONDITION – CONTINUED MARKETING

17.1 Pending fulfilment of the suspensive conditions described under clause 15 and 16 (Sale of Second Property), the Seller shall be entitled to continue to market the Property through the Agent and should, prior to fulfilment of these conditions, a bona fide offer (hereinafter referred to as the "Competing Offer") for the Property be received through the Agent, which but for this Agreement, the Seller wishes to accept, the Seller may do so subject to the following:

17.1.1 a copy of the Competing Offer shall be delivered to the Purchaser who shall be given an option for 48 (forty-eight) hours from delivery to waive the suspensive conditions contained under clause 15 and 16.

17.1.2 exercise of this option by the Purchaser shall be exclusively by written notice delivered timeously to the Agent.

17.1.3 should the Purchaser not timeously exercise the option as aforesaid, the Seller shall be entitled to accept the Competing Offer and, on acceptance thereof, this Agreement between the Seller and the Purchaser shall thereupon immediately and automatically be cancelled.

18. IRREVOCABILITY OF OFFER

This offer shall be irrevocable until _____ am/pm on _____. To this end:

18.1 The Purchaser (as Offeror) undertakes not to withdraw this offer during such period and acknowledges that the Agent, by taking receipt of this offer for submission to the Seller, has accepted, as Agent for the Seller, the benefits of this irrevocability.

18.2 This undertaking shall not be extinguished by rejection or counter offer or otherwise, and the offer shall remain open for acceptance until lapse of the said period. Should the offer not be accepted by the Seller within the period aforementioned, this offer shall be automatically cancelled and be of no force and effect.

19. ACCEPTANCE

The Seller shall signify his acceptance of this offer by signing same as Seller where indicated below, whereupon a contract shall forthwith thereupon be constituted in terms hereof without the necessity of communicating such acceptance to the Purchaser as Offeror.

20. CONDITION GOVERNOR

20.1 The Parties shall use their best endeavours to render this Agreement unconditional and shall discharge all obligations which fall due to be discharged prior thereto.

20.2 The Parties agree that should any condition in this Agreement be for the benefit of one party only, the time limit applicable thereto is, however, for the benefit of both Parties. Accordingly, any waiver of such benefit must take place within the time limit, on the expiry of which this Agreement shall fail entirely and no rights or benefits shall thereafter exist for exercise or waiver save for any right which may have arisen by reason of breach.

21. SOLD BOARD

The Parties hereto confirm that the Agent may display a Sold Board on the property from the date of acceptance of this offer until three months after date of occupation.

22. EFFECTIVE CAUSE

The Purchaser warrants that he was introduced to the property by the Agent and that the Agent was the sole effective cause of the sale.

23. EXPLANATION

The Parties hereto confirm that the meaning and consequences of the material provisions of this contract have been fully explained to them by the Agent.

24. COMPLIANCE CERTIFICATES

24.1 The Seller shall for his account deliver to Conveyancer within 30 days from acceptance hereof an Electrical Certificate of Compliance, an Electric Fence Certificate (if applicable), a Gas Certificate of Compliance (if applicable), an Entomologist Certificate of Compliance (if applicable) a Plumbing Certificate (if applicable), issued not more than 3 months prior to the date

of acceptance of the offer, provided that should remedial work be required to enable the Seller to procure the certificate, such period shall be extended to enable the Seller to do so, which obligation the Seller shall discharge before registration of transfer. All certificates shall be issued in terms of and complying with all statutory or regulatory requirements.

24.2 Should the Seller fail to do so, the Conveyancer may arrange for the Certificate to be issued and may deduct the cost thereof from the proceeds of the sale.

24.3 Once issued the Seller or the Agent shall be absolved from any claims in respect of and relating to any items covered by said certificates.

25. SECTIONAL TITLE SCHEME: REAL RIGHT DEVELOPMENT

In terms of the Sectional Title Scheme of which the above unit forms a part, a real right to extend the Scheme, as contemplated in Section 25 of the Sectional Titles Act as amended, has / has not (delete which is not applicable) been reserved in favour of the Developer of the Scheme. The Purchaser acknowledges that he is aware of the Developer's rights to extend the Scheme should such right exist.

26. BODY CORPORATE

The Purchaser agrees that he is aware that upon transfer of the Property into his name, he will become a member of the Body Corporate of the Sectional Title Scheme. The monthly levy is R_____ (_____ _____) subject to an annual escalation and is payable from the date of registration to the managing agents_____ whose offices are situated at the following address __ _____

27. GENERAL

27.1 In this Agreement and its annexures, unless contrary to the subject or context, the following shall apply: -

27.1.1 Words signifying the singular number shall include the plural and vice versa.

27.1.2 Reference to the masculine gender shall include the feminine gender and vice versa.

27.1.3 Reference to a person shall include reference to a Company, Close Corporation, Trust or an Association of Persons.

27.2 The parties warrant to each other that all consents required in terms of the Matrimonial Property Act No 88 of 1984 have been duly furnished.

27.3 As a result of the South African Revenue Services doing risk analysis on both the transferor and transferee on all transfer transactions both the Seller and the Purchaser warrant to each other and the Agent that all tax issues (both personal and otherwise) included but not limited to tax returns and tax payments are current and up to date.

27.4 This Agreement constitutes the entire Agreement between the Parties and no warranties, representations, guarantees or other terms and conditions of whatsoever nature not contained or recorded herein shall be of force or effect.

27.5 The Purchaser has not, in making this offer, relied on any warranty and/or representation made by the Seller and/or Sales Agent and/or Agent and/or any other party not contained herein.

27.6 The Purchaser hereby authorises the Agent and the Originator to obtain without limitation any documentation, credit bureau reports and bank statements as may be required to secure bond finance in terms of Clause 14.

28. PROTECTION OF PERSONAL INFORMATION ACT (POPI Act)

28.1 By signing this agreement, the parties to this agreement hereby grant consent to their personal information recorded in this agreement and annexures being shared with the relevant parties to this transaction being: conveyancers, mortgage originators, any other party to whom mortgage loan applications may be made on the Purchasers behalf, SARS, the FIC Centre, the local authority, any homeowners' association, body corporate or managing agent, Master's Office, deeds registry, and any other third party that may be relevant to this transaction.

28.2 The parties further consent to the use of their Personal Information for future business and/or marketing purposes only. Should the parties not consent to the retaining of their details then this is to be indicated on this document or the Agent is to be informed separately in writing.

29. CURRENT MANDATE

29.1 The Seller confirms that he has not entered any Sole Mandate and /or Sole and Exclusive Mandate in respect of the Property that is valid at the date of this agreement.

30. CURRENT OFFER *(Delete if not applicable)*

30.1 There is a current offer (first agreement) on the Property entered by the Seller. The suspensive condition on above offer expires on _____/_____/ 20_____. If the current offer remains unsuccessful on the day after above expiry date this offer (second agreement) will become in force. Both parties are irrevocably bound to this second agreement and any extension granted to any party on the first agreement will constitute a breach of this second agreement.

30.2 The Seller will furnish the Agent with a copy of the first agreement.

31. ADDITIONAL CLAUSES

_____

_____

_____

_____

_____

_____

_____

_____

_____

_____

THUS DONE AND SIGNED by the **PURCHASER** at _____ on _____20 ____ at _____ am/pm

AS WITNESS _____ **PURCHASER**

_____ _____ **PURCHASER 2/SPOUSE**

NAME _____

ID _____

THUS DONE AND SIGNED by the **SELLER** at _____ on _____20 ____ at _____ am/pm

AS WITNESS _____ **SELLER**

_____ _____ **SELLER 2/SPOUSE**

NAME _____

ID _____

I/we hereby accept the benefits conferred upon me/us in this Agreement.

Property Practitioner _____Tel _____

who hereby warrants the validity of his _____ Fidelity Fund Certificate as at the date of signature of this agreement.

Signed: _____ Date _____20_____
Property Practitioner

Co-Signed: _____ Date _____20_____
Property Practitioner
who certifies that this document was completed under his/her supervision.

Blue Lily Properties Eastrand t/a Blue Lily Properties is registered with the PPRA, holding a valid business Fidelity Fund Certificate and operating a trust account.

Company Registration Number _____ VAT Number (if applicable) _____

Company Telephone Number _____ Company Email Address _____

Registered Address _____

Signed: _____ Date _____20_____
For and on behalf of the Agent

ANNEXURE 1
INFORMATION FOR TRANSFER / LOAN APPLICATION PURPOSES

PURCHASER

SURNAME (1)		_____		
FIRST NAMES (1)		_____		
SURNAME (2)		_____		
FIRST NAMES (2)		_____		
MARITAL STATUS (MICP / ANC)		_____		
IDENTITY NUMBERS	(1)	_____		
	(2)	_____		
PLACE OF BIRTH	(1)	_____	(2)	_____
CELL. PHONE	(1)	_____	(2)	_____
BUS PHONE	(1)	_____	(2)	_____
TAX NUMBER/S	(1)	_____	(2)	_____
EMAIL (1)		_____		
EMAIL (2)		_____		
POSTAL ADDRESS		_____		
		_____		
OCCUPATION	(1)	_____		
	(2)	_____		
EMPLOYED BY	(1)	_____		
	(2)	_____		
PURCHASER (1) MONTHLY INCOME	R	_____		
PURCHASER (2) MONTHLY INCOME	R	_____		
TOTAL	R	_____		

F.I.C.A. PROOF OF IDENTIFICATION AND PROOF OF RESIDENCE ATTACHED HERETO – PLEASE TICK APPLICABLE BOX

ID DOCUMENT ☐ PROOF OF RESIDENCE ☐ ID DOCUMENT ☐ PROOF OF RESIDENCE ☐

PURCHASER 1 _____ **PURCHASER 2** _____

Property Practitioner / Verification Officer: _____ **Compliance Officer:** _____

Fidelity Fund Certificate No: _____ **Income Tax No:** _____

THE ABOVE INFORMATION IS HEREBY CERTIFIED TO BE CORRECT

ANNEXURE 2
INFORMATION FOR TRANSFER / LOAN APPLICATION PURPOSES

SELLER

SURNAME (1) _____

FIRST NAMES (1) _____

SURNAME (2) _____

FIRST NAMES (2) _____

MARITAL STATUS (MICP / ANC) _____

IDENTITY NUMBERS (1) _____

(2) _____

PLACE OF BIRTH (1) _____ (2) _____

CELL. PHONE (1) _____ (2) _____

BUS PHONE (1) _____ (2) _____

TAX NUMBER/S (1) _____ (2) _____

EMAIL (1) _____

EMAIL (2) _____

POSTAL ADDRESS _____

_____

_____

BOND AT _____

APPROX BALANCE R _____

ACCOUNT NO _____

MANAGING AGENTS _____

PARTICIPATION QUOTA _____

MONTHLY LEVY / HOA FEES _____

F.I.C.A. PROOF OF IDENTIFICATION AND PROOF OF RESIDENCE ATTACHED HERETO – PLEASE TICK APPLICABLE BOX

ID DOCUMENT ☐ PROOF OF RESIDENCE ☐ ID DOCUMENT ☐ PROOF OF RESIDENCE ☐

SELLER 1 _____ **SELLER 2** _____

Property Practitioner / Verification Officer: _____ **Compliance Officer:** _____

THE ABOVE INFORMATION IS HEREBY CERTIFIED TO BE CORRECT